

presented meritless opposition to Defendant’s demur. (*Id.*). Accordingly, Defendants request sanctions in the amount of \$45,353.00 against the Plaintiffs and Plaintiffs’ counsel of record.

The Court finds that there are material facts in dispute. Defendants have not met its prima facie burden of showing that the plaintiffs filed the FAC primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation; the claims, defenses, or other legal contents are not warranted by law or by nonfrivolous argument for extension, modification, or reversal of existing law or establishment of new law; the allegations and other factual contentions have no evidentiary support; and the denials of factual contentions are not warranted on evidence. In line with the court’s ruling on the Defendants’ demurrer, which overruled some of the causes of actions, the defendants cannot demonstrate that the FAC is completely without merit.

IV. CONCLUSION

Based on the foregoing, Defendants motion for sanctions is DENIED.

Calendar Line # 5

Case Name Bradley Land vs Apple, Inc., a Delaware Corp.

Case No. 23CV427732

Motion for Summary Judgment/Adjudication

Before the court is Defendant Apple Inc.’s motion for summary judgment or, in the alternative summary adjudication. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

During the second half of 2021, many employers decided to require their employees to get COVID shots in order to keep their jobs. (Complaint, ¶12). Defendant Apple Inc. (“Apple”) did not enact a mandatory COVID vaccine policy for employees at its Cupertino headquarters or its retail stores. (Complaint, ¶13). At most, defendant Apple required employees take a COVID test before going to work. (*Id.*)

Plaintiff Bradley Land (“Plaintiff”) worked as a Threat Intelligence Analyst on defendant Apple’s Security Engineering and Architecture team. (Complaint, ¶14). By the fall of 2021, Plaintiff had worked at defendant Apple for over thirteen years. (*Id.*) Plaintiff received excellent reviews and had no record of discipline. (*Id.*)

In 2021, defendant Apple distributed a COVID vaccination survey to its corporate employees. (Complaint, ¶15.) The survey allowed for four possible answers: (a) I am fully vaccinated; (b) I have received the first vaccine shot but not the second; (c) I am unvaccinated; (d) I choose not to answer. (*Id.*) Defendant Apple stated in the survey that it would assume anybody who selected “d” was unvaccinated, whether true or not. (Complaint, ¶16.) Defendant Apple also stated the survey results would be shared with other employees and unnamed third parties. (*Id.*)

Plaintiff was working remotely from Virginia when he received the survey. (Complaint, ¶17). Plaintiff informed his supervisor, senior manager, and the human resources department that he objected to the forced disclosure of his personal health information. (*Id.*) Plaintiff also told them that he objected to defendant Apple making assumptions about his vaccination status and sharing that confidential information with other Apple employees and third parties. (*Id.*)

Defendant Apple responded to Plaintiff’s objection by terminating his employment. (Complaint, ¶18). Plaintiff’s employment was terminated effective December 15, 2021. (*Id.*) Defendant Apple said it fired Plaintiff for not complying with its COVID-19-related policies. (Complaint, ¶19).

On December 14, 2023, Plaintiff filed a complaint against defendant Apple asserting causes of action for:

- (1) Declaratory Relief - Violation of Article I Section I of the Cal. Constitution
- (2) Wrongful Termination in Violation of Public Policy

On January 29, 2024, defendant Apple filed an answer to Plaintiff's complaint.

On April 26, 2024, defendant Apple filed a motion for judgment on the pleadings. On June 20, 2024, the Honorable Shella Deen issued an order, among other things, granting defendant Apple's motion for judgment on the pleadings as to the first cause of action but denying defendant Apple's motion for judgment on the second cause of action.

On August 11, 2025, defendant Apple filed the motion now before the court, a motion for summary judgment/adjudication of Plaintiff's remaining claim, wrongful termination in violation of public policy.

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843). In analyzing motions for summary judgment or adjudication, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294). "[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519). If the moving party fails to carry its burden, the inquiry is over, and the motion must be denied. (See *Id.*; see also *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468). Even if the moving party does carry its burden, the non-moving party will still defeat the motion by presenting evidence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at 849-50). Therefore, summary judgment or adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741). "A party may seek summary adjudication on whether a cause of action, affirmative defense, or punitive damages claim has merit or whether a defendant owed a duty to a plaintiff. 'A motion for summary adjudication...shall proceed in all procedural respects as a motion for summary judgment.'" (*California Bank & Trust v. Lawlor* (2013) 222 Cal.App.4th 625, 630 [internal citations omitted]). Code of Civil Procedure section 437c(t): "[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that *does not completely dispose* of a cause of action, affirmative defense, or issue of duty pursuant to" subdivision (t).

Pursuant to Code of Civil Procedure section 437c(p)(1), the plaintiff moving for summary judgment must satisfy the initial burden of proof by presenting proving each element of a cause of action. In reviewing the motion, courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389; *Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99). Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1)). To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166).

A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2)). To meet this burden of showing a cause of action cannot be established, a defendant must show not only "that the

plaintiff *does not possess* needed evidence” but also that “the plaintiff *cannot reasonably obtain* needed evidence.” (*Aguilar, supra*, 25 Cal.4th at p. 854)(emphasis added). It is insufficient for the defendant to merely point out the absence of evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891). The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (*Id.*). The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (*Aguilar, supra*, 25 Cal.4th at p. 855). “Once the defendant. . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2)). The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Id.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467).

Code of Civil Procedure section 457c(c): “requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings.” (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-82). If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544).

III. ANALYSIS

A. PROCEDURAL VIOLATION

As a preliminary matter, the court notes that Plaintiff’s opposition is untimely filed and served. The most recently amended version of Code of Civil Procedure section 437c, subdivision (b)(2), states, “Any opposition to the motion shall be served and filed not less than 20 days preceding the notice or continued date of hearing, unless the court for good cause orders otherwise.” Based on a hearing date of May 19, 2026, Plaintiff’s opposition was due on April 29, 2026. Plaintiff did not file or serve opposition until May 11, 2026, twelve days late.⁷

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Plaintiff, now self-represented,⁸ requests the court nevertheless consider his late-filed opposition noting his prior counsel’s withdrawal from representation and indicating he “diligently attempted to retain substitute representation.”⁹

Since the court has discretion to consider a late filed paper, since defendant Apple has not demonstrated any real prejudice from the late filing, and to avoid the expenditure of any further judicial resources, the court will look past

⁷ Even under the former version of Code of Civil Procedure section 437c, subdivision (b)(2), Plaintiff’s opposition had to be filed and served not less than 14 days preceding the hearing or, here, by May 5, 2026. Under either version, Plaintiff’s opposition is untimely.

⁸ Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (*Lombardi v. Citizens Nat’l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).

⁹ See Plaintiff’s Request that the Court Consider Late-Filed Opposition to Defendant’s Motion for Summary Judgment.

this procedural violation and consider the opposition on its merits. However, Plaintiff is hereby admonished for the procedural violation. Any future violation may result in the court's refusal to consider the untimely filed papers.

B. WRONGFUL TERMINATION IN VIOLATION OF PUBLIC POLICY

" '[W]hile an at-will employee may be terminated for no reason, or for an arbitrary or irrational reason, there can be no right to terminate for an unlawful reason or a purpose that contravenes fundamental public policy.' [Citations omitted.]" (*Silo v. CHW Med. Found.* (2002) 27 Cal.4th 1097, 1104). "The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm." (*Yau v. Allen* (2014) 229 Cal.App.4th 144, 154.) "[F]or a policy to support a wrongful discharge claim, it must be: (1) delineated in either constitutional or statutory provisions; (2) "public" in the sense that it "inures to the benefit of the public" rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) substantial and fundamental." (*Stevenson v. Superior Court* (1997) 16 Cal.4th 880, 894).

In moving for summary judgment/ adjudication of this cause of action, defendant Apple invites the court to revisit an argument defendant Apple earlier made in moving for judgment on the pleadings, i.e., the second cause of action for wrongful termination in violation of public policy is derivative of the first and since the Honorable Deen has already made a determination, as a matter of law, that Plaintiff cannot state a cause of action for invasion of privacy because the public policy to which this claim is tethered has not been violated, then there can be no wrongful termination.

In revisiting this argument, the court will now agree that Plaintiff cannot maintain a violation for wrongful termination in violation of public policy where the Plaintiff's exercise (or refusal to waive) his constitutional right of privacy would not, as a matter of law, amount to an actionable invasion of privacy. Defendant Apple relies, in part, upon *Pettus v. Cole* (1996) 49 Cal.App.4th 402 (*Pettus*) to assert the proposition that the right to privacy provides a public policy sufficient to state a cause of action for wrongful termination only if the elements for invasion of privacy are all present. Indeed, the *Pettus* court undertook an analysis of an invasion of privacy claim and only after undertaking such an evaluation and determining the test for a violation had been met did the *Pettus* court reach the conclusion that a claim for wrongful termination may proceed. (*Pettus, supra*, 49 Cal.App.4th at pp. 452 – 463).

The test the *Pettus* court undertook is the same one that Judge Deen enunciated in her earlier ruling granting motion for judgment on the pleadings of the first cause of action.

[The California Supreme Court] articulated a two-part inquiry for determining whether the right to privacy under article I, section 1 has been violated. (*Hill, supra*, 7 Cal.4th at p. 26).

First, the complaining party must meet three "threshold elements' ... utilized to screen out claims that do not involve a significant intrusion on a privacy interest protected by the state constitutional privacy provision." (*Loder v. City of Glendale* (1997) 14 Cal.4th 846, 893 [59 Cal. Rptr. 2d 696, 927 P.2d 1200] (*Loder*)). The party must demonstrate "(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy." (*Hill, supra*, 7 Cal.4th at pp. 39–40). This initial inquiry is necessary to "permit courts to weed out claims that involve so insignificant or de minimis an intrusion on a constitutionally protected privacy interest as not even to require an explanation or justification by the defendant." (*Loder*, at p. 893).

Second, if a claimant satisfies the threshold inquiry, "[a] defendant may prevail in a state constitutional privacy case by negating any of the three elements just discussed or by pleading and proving, as an

affirmative defense, that the invasion of privacy is justified because it substantively furthers one or more countervailing interests.” (*Hill, supra*, 7 Cal.4th at p. 40.) “The plaintiff, in turn, may rebut a defendant's assertion of countervailing interests by showing there are feasible and effective alternatives to defendant's conduct which have a lesser impact on privacy interests.” (*Ibid.*). (*Lewis v. Superior Court* (2017) 3 Cal.5th 561, 571-572).

Judge Deen reached the conclusion that Plaintiff had not met the “threshold elements” for an invasion of privacy claim concluding, “Plaintiff has not alleged conduct by defendant Apple constituting a serious invasion of privacy.”

The Plaintiff, in opposition, takes issue with Judge Deen’s finding and conclusion claiming there remain triable issues of material fact with regard to whether defendant Apple’s conduct constituted a serious invasion of privacy offering only his declaration in which he states, in relevant part, his *belief* that, “Defendant’s conduct violated my privacy rights and California public policy.”¹⁰ However, Plaintiff’s subjective belief does not overcome or even create a triable issue with regard to Judge Deen’s previous legal determination. (See, e.g., *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433—“Moreover, plaintiff’s subjective beliefs in an employment discrimination case do not create a genuine issue of fact; nor do uncorroborated and self-serving declarations.”).

The court concludes Plaintiff may not maintain a cause of action for wrongful termination in violation of public policy where, as here, the court has already made a determination that Plaintiff cannot state an underlying violation of public policy.

IV. CONCLUSION

Based on the foregoing, defendant Apple’s motion for summary judgment is GRANTED. The Court will prepare the formal Order.

//

//

//

//

//

//

//

//

//

//

¹⁰ See Plaintiff’s Separate Statement in Opposition to Defendant’s Motion for Summary Judgment, Disputed Material Fact No. 3; see also Declaration of Bradley Land in Support of Opposition to Motion for Summary Judgment, ¶¶6 – 8.

Calendar Line # 7
Case Name Immigrant Rights Defense Council, LLC et al vs Shamsher Brar
Case No. 25CV457348
Motion to Compel Responses to Form Interrogatories & Sanctions On July 18, 2025, the plaintiff, Immigration Rights Defense Council (“Plaintiff”) filed a motion to compel responses for form interrogatories (“RFI”), set one and sanctions against Defendant Shamsher Brar. The motion was accompanied by a proof of service via mail delivery on that same day. No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 6, 2026.¹¹ A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof. <u>I. BACKGROUND</u> The Court has carefully reviewed Plaintiff’s moving papers including, notice of motion, memorandum of points and authorities, Declaration of Sebastian M. Medvei and attached Exhibit 1, and proof of service, (totaling 18pages); and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2017.010: “Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” For discovery purposes, information is regarded as relevant “if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof.” (<i>City of Los Angeles v. Superior Court</i> (2017) 9 Cal.App.5th 272, 288) .Where a party objects or responds inadequately to discovery requests, a motion lies to compel further responses, and that party has the burden to justify the objections or inadequate responses. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies “[o]n receipt of a response to a demand for inspection”]). “A trial court’s determination of a motion to compel discovery is reviewed for abuse of discretion. However, when the facts asserted in support of and in opposition to the motion are in conflict, the trial court’s factual findings will be upheld if they are supported by substantial evidence.” (<i>Costco Wholesale Corp. v. Superior Court</i> (2009) 47 Cal.4th 725, 733). “The purpose of the discovery rules is to enhance the truth-seeking function of the litigation process and eliminate trial strategies that focus on gamesmanship and surprise. In other words, the discovery process is designed to make a trial less a game of blindman’s bluff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent.” (<i>Juarez v. Boy Scouts of Am., Inc.</i> (2000) 81 Cal.App.4th 377, 389). <u>A. Procedural Requirements</u> (1) Timeliness Code of Civil Procedure section 2030.300, subdivision (c), provides that notice of a motion to compel further responses must be given within 45 days following the service of the verified response, or any

¹¹ The Court notes that this is the third discovery motion that was unopposed in this matter. On May 5, 2026, the court heard the plaintiff’s motion to deem request for admissions admitted and sanctions. The defendant did not oppose the motion. On May 14, 2026, the court heard the plaintiff’s motion to compel responses to production of documents, set one and sanctions. The defendant did not oppose the motion.